



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

NOV 5 2001

DOT-E 10747
(THIRD REVISION)

EXPIRATION DATE: September 30, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Equilon Enterprises, LLC
Houston, TX
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of Class 3 liquids in a non-DOT specification cargo tank, described as 1200 gallon volumetric prover tank, mounted on a trailer. This exemption provides no relief from the Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.242(b) and 173.243(b) insofar as non-DOT specification cargo tank motor vehicles are not authorized packages.
5. BASIS: This exemption is based on the application of Equilon Enterprises, LLC dated September 27, 2001, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Fuel, aviation, turbine engine	3	UN1863	I, II, III
Gasoline	3	UN1203	II
Kerosene	3	UN1223	III
Petroleum distillates, n.o.s.	3	UN1268	I, II, II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification 1200 gallon cargo tank (volumetric prover tank) mounted on a trailer. The tank was manufactured by Brownie Tank Mfg. Co. of Minneapolis Minn. The maximum pressure during transportation must be less than 2 psig. Pressure relief devices are not required. Internal stop-valves on bottom outlets are not required. Remote closure devices and overturn protection are not required.

b. TESTING - The prover tank must be visually inspected and pressure tested as required by § 180.407(c) for MC-306 Specification cargo tanks.

c. OPERATIONAL CONTROLS -

(1) The bumper for the trailer must meet the requirements of §§ 180.405(1)(2) and 393.86.

(2) The cargo tank must be drained of all liquid prior to transportation. Only vapors of petroleum distillates and residue liquids at a pressure of less than 2 psig are authorized as lading in transportation.

8. SPECIAL PROVISIONS:

a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. MARKING - The cargo tank covered by this exemption must be plainly marked on both sides, in letters at least two inches high on a contrasting background, "DOT-E 10747." The marking requirement of § 172.203(a) is waived.

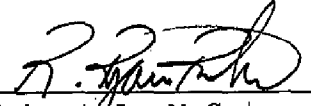
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: This exemption imposes no additional modal requirement.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

NOV 5 2001
(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTOlson/alb